

Court No. - 29

Case :- CRIMINAL MISC. WRIT PETITION No. - 11034 of 2015

Petitioner :- Mohammad Salim Samani And Another

Respondent :- State Of U.P. And 3 Ors

Counsel for Petitioner :- Azim Ahmad Kazmi

Counsel for Respondent :- Govt. Advocate, Nripendra Mishra

Hon'ble V.K. Shukla, J.

Hon'ble Mrs. Ranjana Pandya, J.

Heard learned counsel for the petitioners and learned AGA for the State as well as Shri Nripendra Mishra, learned counsel for respondent nos.3 and 4.

Petitioners have approached this Court with a request to quash the FIR dated 16.04.2015 registered as Case Crime Nos. 167 of 2015 under Section 135 of the Electricity Act at police station Khekra, District Baghpat.

This Court has the occasion to peruse the FIR and the FIR in question does disclose a cognizable offence, in view of this, there is no occasion for this Court to quash the FIR, as has been prayed on behalf of petitioners, as such, prayer made on the said score is refused by this Court.

Learned counsel for the petitioners contended that the offence in question, as has been alleged to have been committed by the petitioners, is under Section 135 of the Electricity Act and for the same, even if the charges are found to be proved sentence of more than 7 years cannot be awarded and, in view of this, mechanically arrest should not be effectuated by the police personnel.

The fact of the matter is that till date arrest has not been effectuated and this is mere apprehension of the petitioners that they would be arrested in breach of provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C. Once there is statutory provision provided for then it is always expected that the said provisions would be adhered to and in case there is any violation of the same, complaint can also be made before the Magistrate concerned to remedy the situation and if petitioners' offence is compoundable, they may seek their remedy, as provided, under the provisions of Electricity Supply Code, 2005 as well as under Section 152 of Electricity Act, 2003.

In view of the above, it is hereby directed that in case arrest of petitioners are to be effectuated and the offence, in which they are wanted, will not entail sentence of more than 7 years then in that event concerned police personnel should deal with the matter in compliance of the provisions as contained under Section 41 (1) (b) read with Section 41-A of the Cr.P.C.

Writ petition stands disposed of.

Order Date :- 6.5.2015

A. Pandey